



CHAPTER lxxvi.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 relating to Ardrossan Saltcoats and District Cambuslang (Extension) Cowdenbeath Lochgelly and District and Skelmorlie. A.D. 1910.
[3rd August 1910.]

WHEREAS under the authority of the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act: 45 & 46 Vict.
c. 56.
51 & 52 Vict.
c. 12.
53 & 54 Vict.
c. 13.
2 Edw. 7. c. 35

And whereas a Provisional Order made by the Board of Trade under the authority of the said Acts is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Acts as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Electric Lighting Orders Confirmation (No. 2) Act 1910. Short title.

A.D. 1910.

Orders in
schedule
confirmed.

2. The several Orders as amended and set out in the schedule to this Act are hereby confirmed and the same shall from and after the passing and subject to the provisions of this Act have full validity and effect.

For protec-
tion of Fife
County
Council.

3.—(1) Nothing in the Cowdenbeath Lochgelly and District Electric Lighting Order 1910 confirmed by this Act shall in any way limit or affect the powers of the County Council of the county of Fife (in this section referred to as “the County Council”) to rebuild alter widen or repair the structure of any bridge upon which any work by the Order authorised shall be constructed or impose upon the County Council any liability which was not by law imposed upon them prior to the commencement of the Order.

(2) If at any time the County Council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the Order authorised they shall prior to the commencement of such work give the Undertakers one month's notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the County Council necessary to temporarily remove the mains and other electrical appliances belonging to the Undertakers from such bridge then the Undertakers shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the County Council.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute arises between the County Council and the Undertakers with regard to this section the same shall be determined by an arbiter to be appointed on the application of either party by the Board of Trade.

As to costs
of Cambus-
lang Order.

4. Notwithstanding anything contained in the Lanarkshire Electricity and Refuse Destruction Order 1903 it shall not

be obligatory on the Undertakers of the Cambuslang Electric Lighting (Extension) Order 1910 confirmed by this Act to charge the whole of the expenses of and incidental to the preparing for obtaining and confirming that Order to the Cambuslang Special Lighting District only but such proportion of those expenses as the Secretary for Scotland may in the circumstances consider just and reasonable may be defrayed by those Undertakers out of such rate or rates leviable by them as the Secretary for Scotland may approve.

A.D. 1910.

SCHEDULE.

LIST OF ORDERS.

1. ARDROSSAN SALTCOATS AND DISTRICT.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to George Balfour.
2. CAMBUSLANG (EXTENSION).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to the County Council of the county of Lanark
3. COWDENBEATH LOCHGELLY AND DISTRICT.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to George Balfour.
4. SKELMORLIE.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to William Cornfoot Philp and Reginald Vandezee Farnham trading together as the Skelmorlie Electrical Supply Company.

A.D. 1910.

ARDROSSAN SALTCOATS AND DISTRICT
ELECTRIC LIGHTING.*Ardrossan
Saltcoats and
District.**Provisional Order granted by the Board of Trade under the
Electric Lighting Acts 1882 and 1888 the Electric Lighting
(Scotland) Act 1890 and the Electric Lighting (Scotland)
Act 1902 to George Balfour in respect of the Burghs of
Ardrossan and Saltcoats and a portion of the Parish of
Stevenston in the County of Ayr.*

Short title.

1. This Order may be cited as the Ardrossan Saltcoats and District Electric Lighting Order 1910.

Incorporation of Electric Lighting (Clauses) Act 1899.
Undertaker.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of section 84 of that schedule) are incorporated with and form part of this Order.

3. The Undertaker for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 is George Balfour of 22A College Hill Cannon Street in the City of London electrical engineer.

Area of supply.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertaker and signed by an assistant secretary to the Board of Trade.

Power to break up streets &c.

5. Subject to the provisions incorporated with this Order the Undertaker is specially authorised by this Order to break up the streets and parts of streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the railways and tramways which are also mentioned in that schedule.

Compulsory works.

6. The streets and parts of streets throughout which suitable and sufficient distributing mains for the purposes of general supply are to be laid down within a period of two years after the commencement of this Order are those mentioned in the Third Schedule to this Order.

Maximum prices.

7. The maximum prices which may be charged by the Undertaker as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Deposit.

8. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred and fifty pounds made up as follows (namely) one hundred

pounds in respect of the burgh of Ardrossan one hundred pounds in respect of the burgh of Saltcoats and fifty pounds in respect of the parish of Stevenston.

A.D. 1910.

*Ardrossan
Saltcoats and
District.*

9.—(1) If the local authorities in whose districts the area of supply is situate obtain from the Board of Trade a Provisional Order for the joint exercise by them by the constitution of a joint committee or joint board or otherwise of the powers conferred upon the Undertaker by this Order and such Provisional Order is confirmed by Parliament they may jointly acquire the undertaking on the following terms and conditions :—

Purchase by
local autho-
rities.

- (A) The said local authorities may at the expiration of a period of thirty years from the commencement of this Order or at the end of any subsequent period of seven years by six months' previous notice in writing require the Undertaker to sell and thereupon the Undertaker shall sell to them the undertaking (including all lands buildings works materials and plant suitable to and used by the Undertaker for the purposes of the undertaking) upon the terms of the said local authorities paying to the Undertaker the fair market value of the undertaking as a going concern such value to be determined in default of agreement by arbitration :
- (B) The Board of Trade may determine any question which arises with reference to the purchase which is not to be determined by arbitration and in default of agreement as to the date on which the purchase is to take effect may fix that date :
- (C) From the date on which any such purchase takes effect the undertaking shall vest in the local authorities freed from all debts mortgages or other similar obligations of the Undertaker or attaching to the undertaking and the powers of the Undertaker in relation to the supply of electricity within the area of supply under this Order or the principal Act shall absolutely cease and determine and shall vest in the said local authorities who shall become the Undertakers for the purposes of this Order :
- (D) For the purpose of enabling the said local authorities to determine whether they will exercise the said power of joint purchase the works plant and accounts of the undertaking shall be open to inspection by any person appointed for that purpose by the said local authorities at any time between the fifteenth day of February and the fifteenth day of May in each year in which the said local authorities may under this section purchase the undertaking and the Undertaker

A.D. 1910.

Ardrossan
Saltcoats and
District.

shall afford to such person every possible facility for such inspection :

- (E) The Undertaker shall on or before the fifteenth day of February in each year in which the said local authorities may under this section purchase the undertaking submit to the said local authorities a copy of the last balance sheet of the affairs of the undertaking.

(2) If the special power of joint purchase herein-before contained shall not in the meantime have been exercised each local authority may acquire so much of the undertaking as is situated in its district under section 2 of the Electric Lighting Act 1888 Provided that the period of forty-two years mentioned in that section shall be reckoned from the commencement of this Order.

Undertaking
to be trans-
ferred to a
registered
company.

10.—(1) The powers given by this Order shall not be exercised unless within twelve months or such extended period not exceeding in the whole fifteen months as the Board of Trade allow after the passing of the Act confirming this Order the Undertaker transfers the undertaking to a limited company registered under the Companies (Consolidation) Act 1908 and approved by the Board of Trade for the purpose.

(2) Within that period the Undertaker may transfer and the company to whom the transfer is to be made may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade by deed approved by that Board.

(3) On any such transfer the rights powers authorities obligations and liabilities of the Undertaker in respect to the undertaking shall be transferred to and may be exercised by and shall attach to the company to whom the transfer is made and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(4) If the transfer directed by this Order has not been made before the expiration of the period limited in that behalf in this section the Board of Trade may revoke this Order upon the expiration of that period.

Commence-
ment of
Order.

11. Except for the purpose of enabling the transfer directed by this Order to be made this Order shall not come into force notwithstanding the confirmation thereof by Parliament until the day when the transfer takes effect and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

A.D. 1910.

Ardrossan
Saltcoats and
District.

FIRST SCHEDULE.

AREA OF SUPPLY.

The burghs of Ardrossan and Saltcoats and so much of the parish of Stevenston lying outwith the said burghs as is included within the following boundaries:—

- (A) The eastern boundary of the burgh of Saltcoats from low-water mark at ordinary spring tides to a point where the Old Raise Road joins the High Road from Ardrossan to Stevenston on the west:
- (B) An imaginary line drawn from the said junction of the said Old Raise Road and High Road from Ardrossan to Stevenston in a north-easterly direction to the most northerly point of the special lighting district of Stevenston as said special lighting district is defined in the minute of meeting of the northern district committee of the county council of the county of Ayr dated 15th August 1895 and extended as set forth in the minute of meeting of the said committee dated 9th May 1907 in the steading of Kerelaw Mains on the north:
- (C) The north-eastern eastern south-eastern and southern boundaries of the said special lighting district to the south-westmost point of the said special lighting district and an imaginary line drawn from the said last-mentioned point in a southerly direction to a point on the shore at low-water mark at ordinary spring tides indicated by a stone marking the boundary between the Ardeer and Auchendarvie estates on the east and south-east:
- (D) The line of low-water mark at ordinary spring tides from the said stone to a point where it is intersected by the eastern boundary of the burgh of Saltcoats on the south or south-west:

Provided that in case of difference between the above description and the area as delineated on the deposited map the latter shall prevail.

A.D. 1910.

SECOND SCHEDULE.

*Ardrossan
Saltcoats and
District.**List of streets and parts of streets not repairable by the local authority
railways and tramways which may be broken up by the Undertaker
in pursuance of the special powers granted by this Order.*

(a) STREETS:—

In the burgh of Ardrossan—Hill Place Winton Street Seton Street
Anderson Terrace Park Road Glasgow Lane Crescent Park Avenue
Eglinton Lane Harvie Lane Barrie Terrace South Beach Road the
continuation in a south-easterly direction of South Crescent from the
Academy School to the burgh boundary unnamed road leading from
North Beach past Chapelhill Farm to Dalry Road unnamed road from
Barrie Terrace to Parkhouse Road.

In the burgh of Saltcoats—Campbell Avenue Donaldson Avenue
Factory Place McIsaac Road Parkend Avenue Thomas Campbell Street
Wylie Road unnamed lane leading from Glencairn Lane to Kerelaw
Cottage Braehead Lane lane leading from McLauchlans Lane past Canal
Place to Auchenharvie Colliery unnamed road leading from Victoria
Place to Hirst Place across Braes Giffen Street new streets formed in
Townhead lands not named Jacks Road access to Caledonian Railway
Station Kerr's Lane from Montgomerie Crescent to Montgomerie Road
Well Park Place roadway formerly site of railway from level-crossing at
Auchenharvie Colliery running along foreshore and ending at Saltcoats
Harbour.

In the parish of Stevenston—Kirkgate The Loan road forming
southern access to parish church Quarry Road Moorpark Road East
Hillside Street Moorpark Road West except that part west from
Stevenston Station Road as far as the Roman Catholic chapel and school
street known as Portland Place leading to Ardeer Foundry Station
Square Lime Kiln Road.

And the roadways on the following bridges over railways and the
approaches thereto:—

In the burgh of Ardrossan—bridges carrying South Beach Road
Parkhouse Road and Dalry Road over Glasgow and South-
Western Railway (Kilwinning and Ardrossan Branch) bridges
carrying North Crescent Glasgow Street Sorbie Road and
unnamed road from Barrie Terrace to Parkhouse Road over
Lanarkshire and Ayrshire Railway.

In the burgh of Saltcoats—bridges carrying Parkend Road
Victoria Road Sharphill Road Jacks Road and entrance to
Laigh Dykes Farm over Lanarkshire and Ayrshire Railway
bridge carrying Nine Yards Street over Glasgow and South-

Western Railway (Kilwinning and Ardrossan Branch) bridge known as Gasworks Bridge carrying road over Glasgow and South-Western Railway (Kilwinning and Ardrossan Branch) bridge carrying access to the Manse over Glasgow and South-Western Railway (Kilwinning and Ardrossan Branch) bridge known as Bankside Bridge over Glasgow and South-Western Railway (Kilwinning and Ardrossan Branch).

A.D. 1910

*Ardrossan
Saltcoats and
District.*

And the roadways under the following railway bridges:—

In the burgh of Ardrossan—bridge carrying Glasgow and South-Western Railway (Kilwinning and Ardrossan Branch) over road leading from North Beach past Chapelhill Farm, to Dalry Road.

In the burgh of Saltcoats—bridge carrying Lanarkshire and Ayrshire Railway over Canal Street.

In the parish of Stevenston—bridge carrying Lanarkshire and Ayrshire Railway over New Street.

(b) RAILWAYS:—

The following level-crossings:—

In the burgh of Ardrossan—Glasgow and South-Western Railway (Harbour Branch) crossing Princes Street and crossing extension of Harbour Street towards harbour.

In the burgh of Saltcoats—Glasgow and South-Western Railway (Kilwinning and Ardrossan Branch) crossing road from McLauchlans Lane to the shore.

In the parish of Stevenston—Glasgow and South-Western Railway (Kilwinning and Ardrossan Branch) crossing road at Stevenston Station.

(c) TRAMWAYS:—

The tramways of the Ardrossan Saltcoats and District Tramways Company so far as not constructed within the ground belonging to Nobel's Explosives Company Limited.

THIRD SCHEDULE.

List of streets and parts of streets throughout which suitable and sufficient distributing mains for the purposes of general supply are to be laid down within a period of two years after the commencement of this Order.

In the burgh of Ardrossan—Glasgow Street from Winton Street to Princes Street thence along Arran Place and South Crescent to the burgh boundary in Ardrossan Road.

A.D. 1910.

Ardrossan
Saltcoats and
District.

In the burgh of Saltcoats—Ardrossan Road from burgh boundary on west thence along Hamilton Street Dockhead Street Bradshaw Street Nine Yards Street from Bradshaw Street to Kyleshill Kyleshill and Canal Street from Kyleshill to a point opposite the eastern gable of the house marked No. 31 in said Canal Street Countess Street.

In the parish of Stevenston—Boglemart Street from the new street across Glebe Lands to New Street including Fullarton Place Main Street from New Street to Old Bridge across Stevenston Burn New Street from Main Street to road leading past United Free Church westwards towards Ardeer Quarry.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertaker charges any consumer by the actual amount of energy supplied to him he shall be entitled to charge such consumer at the following rates per quarter For any amount up to twenty units ten shillings and for each unit over twenty units sixpence.

SECTION 2.

Where the Undertaker charges any consumer by the electrical quantity contained in the supply given to him he shall be entitled to charge such consumer according to the rates set forth in section 1 of this schedule the amount of energy supplied to such consumer being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertaker under the Board of Trade regulations.

CAMBUSLANG ELECTRIC LIGHTING (EXTENSION). A.D. 1910.

*Provisional Order granted by the Board of Trade under the Cambuslang.
Electric Lighting Acts 1882 and 1888 the Electric Lighting
(Scotland) Act 1890 and the Electric Lighting (Scotland)
Act 1902 to the County Council of the County of Lanark
in respect of extensions of the Special Lighting District of
Cambuslang in the Parish of Cambuslang in the said county.*

1. This Order may be cited as the Cambuslang Electric Lighting Short title.
(Extension) Order 1910.

2. The Cambuslang Electric Lighting Order 1903 (herein-after Construc-
called "the principal order") and this Order may be cited together tion.
as the Cambuslang Electric Lighting Orders 1903 and 1910.

3. Subject to the provisions of this Order there shall be added Added area
to the area of supply for the purposes of the principal order the area of supply.
(in this Order called "the added area") which is described in the
First Schedule to this Order and is more particularly delineated on the
map deposited together with this Order at the Board of Trade by the
Undertakers and signed by an assistant secretary to the Board of Trade.

4. Subject to the provisions of the principal order the Undertakers Power to
are specially authorised to break up the streets and parts of streets break up
within the added area not repairable by the local authority which streets &c.
are mentioned in the Second Schedule to this Order and the tramways
which are also mentioned in that schedule.

5. Subject to the provisions of this Order there shall be added Compulsory
to the list of streets and parts of streets mentioned in the Third works.
Schedule to the principal order (being streets and parts of streets
throughout which the Undertakers are to lay down suitable and
sufficient distributing mains for the purposes of general supply) the
parts of streets within the added area mentioned in the Third Schedule
to this Order.

6. In the application of the principal order to the added area the Commence-
expression "commencement of this Order" shall mean the day on which ment of
the Act confirming this Order is passed. Order.

A.D. 1910.

Cambuslang.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

So much of the special lighting district of Cambuslang in the county of Lanark as constituted at the commencement of this Order as is not included in the area of supply under the principal order.

SECOND SCHEDULE.

List of streets and parts of streets not repairable by the local authority and tramways within the area of supply which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS:—

Mansfield Avenue Holmhill Avenue Burncleuch Avenue Kirkburn Avenue Whitfield Avenue Road to Holmhill Farm-steading Stewarton Drive New Street parallel to Stewarton Drive and on south side thereof Douglas Drive West Coats Road Hunterfield Drive Chatelherault Avenue Richmond Drive Whorlepit Road road past Wellshot Brewery and Wellshot Colliery road leading from Fisheston Highway to road past Wellshot Brewery and Wellshot Colliery road from Fisheston Highway to Whitlawburn Farm-steading Huntly Drive Kinloch Avenue Dean Park Drive Gilmour Place Burnside Terrace Hutchison Place road in front of Low Flemington Rows Castle Chimmings Road road to Melbourne Villa the roadway of the bridge or tunnel carrying the Greenlees Highway over the Lanarkshire and Ayrshire Railway and approaches thereto.

(b) TRAMWAYS:—

The tramways of the Lanarkshire Tramways Company.

THIRD SCHEDULE.

A.D. 1910.

Cambuslang.

Parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

Greenlees Highway from its junction with the Fisheston Highway to a point three hundred yards or thereabouts southwards of the said junction Stewarton Drive from its junction with the Greenlees Highway to a point eight hundred and thirty-three yards or thereabouts westwards from the said junction.

COWDENBEATH LOCHGELLY AND DISTRICT
ELECTRIC LIGHTING.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to George Balfour in respect of the Burghs of Cowdenbeath and Lochgelly and the Parishes of Auchterderran Ballingry and Beath in the County of Fife.

*Cowdenbeath
Lochgelly and
District.*

1. This Order may be cited as the Cowdenbeath Lochgelly and District Electric Lighting Order 1910. Short title.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of section 84 of that schedule) are incorporated with and form part of this Order. Incorporation of Electric Lighting (Clauses) Act 1899.

3. The Undertaker for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 is George Balfour of 22A College Hill Cannon Street in the City of London electrical engineer. Undertaker.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertaker and signed by an assistant secretary to the Board of Trade. Area of supply.

A.D. 1910.

Cowdenbeath
Lochgelly and
*District.*Power to
break up
streets &c.Compulsory
works.

5. Subject to the provisions incorporated with this Order the Undertaker is specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the railways and tramways which are also mentioned in that schedule.

6. The parts of streets throughout which suitable and sufficient distributing mains for the purposes of general supply are to be laid down within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Maximum
prices.

7. The maximum prices which may be charged by the Undertaker as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Deposit.

8. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred pounds.

Transfer of
undertaking.

9.—(1) The powers given by this Order shall not be exercised unless within twelve months or such extended period not exceeding in the whole fifteen months as the Board of Trade allow after the passing of the Act confirming this Order the Undertaker transfers the undertaking to a limited company registered under the Companies (Consolidation) Act 1908 and approved by the Board of Trade for the purpose or to a company incorporated by Act of Parliament and empowered to apply for or take transfers of Electric Lighting Orders.

(2) Within that period the Undertaker may transfer and the company to whom the transfer is to be made may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade by deed approved by that Board.

(3) On any such transfer the rights powers authorities obligations and liabilities of the Undertaker in respect to the undertaking shall be transferred to and may be exercised by and shall attach to the company to whom the transfer is made and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(4) If the transfer directed by this Order has not been made before the expiration of the period limited in that behalf in this section the Board of Trade may revoke this Order upon the expiration of that period.

10. Except for the purpose of enabling the transfer directed by this Order to be made this Order shall not come into force notwithstanding the confirmation thereof by Parliament until the day when the transfer takes effect and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

A.D. 1910.
Cowdenbeath
Lochgelly and
District.
Commence-
ment of
Order

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The burghs of Cowdenbeath and Lochgelly and the parishes of Auchterderran Ballingry and Beath as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of streets not repairable by the local authority railways and tramways which may be broken up by the Undertaker in pursuance of the special powers granted by this Order.

(a) STREETS :—

In the burgh of Cowdenbeath—Prospect Street Pretoria Place Foulford Place Hall Street Burgh Road Christie Place Randolph Street Arthur Place Wallace Street Woodland Place Factory Road No. 7 Pit Road Wilson Street Paul Place Natal Place Burnside Place Frankford Place Bruce Street access from High Street to Northend Show Ground Norwood Place road between east end of Church Street and east end of Thistle Street leading past slaughter-house.

In the burgh of Lochgelly—School Lane Ballingry Lane Rose Lane Gardiner Lane Richmond Lane Hall Lane Rosebank Terrace Brewery Court.

In the parish of Auchterderran—unnamed road leading from Bowhill past Little Thornton Farm to the main road from Lochgelly to Auchterderran unnamed road leading from main road from Bowhill to Auchterderran to Easter Bowhill unnamed road leading from main road Bowhill to Denend School unnamed road leading from Main Street Bowhill past Church of Christ to No. 19 Street.

A.D. 1910.

Cowdenbeath
Lochgelly and
District.

In the parish of Beath :—

Kelty District—Mossgreen Place Croall Place Kelty Hill Road Dewars Row Church Row Adam Terrace Manse Road Moray Street road known as Shiells Road or Bath Street leading from main road at Kelty westwards to the Great North Road roads known as Blackhall Road and Moss Green Road respectively leading from Gask Road to Keltyhill Road.

Lassodie District—road branching off to west from the main road from Kingseat to Cantsdam through Fairfield to Lassodie.

Morayfield—road branching off Great North Road near Cowdenbeath in a westerly direction to back of Round Hill.

In the parish of Ballingry :—

Lochore—road known as Fairport Road leading from Lochore to Ballingry Loanhead Avenue.

And the roadways on the following bridges over railways and the approaches thereto :—

In the burgh of Cowdenbeath—bridge carrying Bridge Street over North British Railway (Dunfermline and Thornton Section) bridge carrying Broad Street over North British Railway (Inverkeithing and Perth Section).

In the parish of Auchterderran—bridges carrying main road from Lochgelly to Auchterderran over North British Railway (Dunfermline and Thornton Section) and over North British Railway (Glencraig Branch).

In the parish of Beath—bridge carrying main road Lumphinnans over North British Railway (Inverkeithing and Perth Section) bridge carrying main road from Cantsdam to Kelty over North British Railway (West of Fife Section) bridge carrying Great North Road over North British Railway (West of Fife Section) near junction of said road with South Black Road.

In the parish of Ballingry—bridge carrying main road Lump-hinnans over North British Railway (Dunfermline and Thornton Section) bridge carrying main road Lochore over North British Railway (Lochore Branch).

And the roadways under the following railway bridges :—

In the burgh of Cowdenbeath—bridges carrying North British Railway (Inverkeithing and Perth Section) over High Street and over Union Street.

In the burgh of Lochgelly—Bridge carrying North British Railway (Dunfermline and Thornton Section) over Station Road.

In the parish of Auchterderran—bridge carrying North British Railway (Craighead Branch) over main road from Auchterderran to Bowhill bridges carrying North British Railway (Dunfermline and Thornton Section) over main road Bowhill at Cardenden Station and over road from Bowhill to Cardenden Village. A.D. 1910.
*Cowdenbeath
Lochgelly and
District.*

In the parish of Beath—bridge carrying North British Railway (West of Fife Section) over road leading from Kingseat and Cantsdam Road to Fairfield.

(b) RAILWAYS :—

The following level crossings :—

In the burgh of Cowdenbeath—mineral railway belonging to Fife Coal Company Limited crossing High Street Moss-side mineral railway belonging to Fife Coal Company Limited crossing Broad Street.

In the burgh of Lochgelly—mineral railway belonging to Lochgelly Iron Company Limited crossing Auchterderran Road.

In the parish of Beath—mineral railway to Hill of Beath belonging to Fife Coal Company Limited crossing main road from Dunfermline to Cowdenbeath and crossing main road from Hill of Beath to Kelty mineral railway to Mossbeath Colliery belonging to Fife Coal Company Limited crossing Moss-side Road mineral railway belonging to Fife Coal Company Limited to Kirkford Pit crossing road between Kelty and Crossgates North British Railway (Blairadam Section) crossing Main Street Kelty near Church Row mineral railway belonging to North British Railway (Blairadam Section) crossing Great North Road near Kelty Station mineral railway belonging to North British Railway (West of Fife Section) crossing road leading from Kingseat and Cantsdam to Fairfield mineral railway belonging to Thomas Spowar and Company crossing road from Fairfield to Lassodie.

In the parish of Auchterderran—North British Railway (Craighead Branch) crossing road from Bowhill past Little Thornton to the main road from Lochgelly to Auchterderran.

(c) TRAMWAYS :—

The tramways of the Dunfermline and District Tramways Company.

A.D. 1910.

THIRD SCHEDULE.

Cowdenbeath
Lochgelly and
District.

List of parts of streets throughout which suitable and sufficient distributing mains for the purposes of general supply are to be laid down within a period of two years after the commencement of this Order.

In the burgh of Cowdenbeath—Broad Street from the bridge over the North British Railway (Inverkeithing and Perth Section) to the junction of that street with High Street High Street from its junction with Broad Street northwards to a point opposite the entrance to Northend Show Ground.

In the burgh of Lochgelly—Main Street from a point opposite School Lane eastwards to its junction with High Street that portion of High Street between Main Street and Hall Street Bank Street from its junction with Main Street to a point opposite the northern boundary of the manse grounds.

In the parish of Beath:—

Kelty District—Main Street from its junction with South Black or Lindsay Road to a point opposite the northern boundary of the grounds of the United Free Church manse.

In the parish of Ballingry:—

Lochore—main road from the point where it is intersected by Fairport Road and Loanhead Avenue to the bridge over the North British Railway (Lochore Branch).

In the parish of Auchterderran:—

Glencraig—main road from Lochore to Lochgelly from the bridge over the Lochfitty Burn southwards to the south end of Gordon Place.

Bowhill—main road from the road leading to Little Thornton Farm to the bridge carrying the North British Railway (Dunfermline and Thornton Section) over the main road.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

A.D. 1910.

Where the Undertaker charges any consumer by the actual amount of energy supplied to him he shall be entitled to charge such consumer at the following rates per quarter For any amount up to twenty units ten shillings and for each unit over twenty units sixpence.

*Cowdenbeath
Lochgelly and
District.*

SECTION 2.

Where the Undertaker charges any consumer by the electrical quantity contained in the supply given to him he shall be entitled to charge such consumer according to the rates set forth in section 1 of this schedule the amount of energy supplied to such consumer being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertaker under the Board of Trade regulations.

SKELMORLIE ELECTRIC SUPPLY.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to William Cornfoot Philp and Reginald Vandezee Farnham trading together as the Skelmorlie Electrical Supply Company in respect of portions of the Parish of Largs in the County of Ayr.

1. This Order may be cited as the Skelmorlie Electric Supply Order 1910.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of section 84 of that schedule) are incorporated with and form part of this Order.

Incorporation of Electric Lighting (Clauses) Act 1899.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are William Cornfoot Philp whose address is Wemyss Bay Hydropathic Skelmorlie and Reginald Vandezee Farnham whose address is Audley End Skelmorlie trading together as the Skelmorlie Electrical Supply Company.

Undertakers.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the

Area of supply.

A.D. 1910. map deposited together with this Order at the Board of Trade by
Skelmorlie. the Undertakers and signed by an assistant secretary to the Board of Trade.

Power to
break up
streets &c.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets and parts of streets not repairable by the local authority which are mentioned in the Second Schedule to this Order.

Compulsory
works.

6. The streets and parts of streets throughout which suitable and sufficient distributing mains for the purpose of general supply are to be laid down within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Maximum
prices.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Powers not to
be exercised
unless under-
taking is
transferred
to a regis-
tered com-
pany.

8.—(1) The powers given by this Order shall not be exercised unless within twelve months or such extended period not exceeding in the whole fifteen months as the Board of Trade may allow after the passing of the Act confirming this Order the Undertakers transfer the undertaking to a limited company registered under the Companies (Consolidation) Act 1908 and approved by the Board of Trade for the purpose.

(2) Within that period the Undertakers may transfer and the company to whom the transfer is to be made may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade by deed approved by that Board.

(3) On such transfer the rights powers authorities obligations and liabilities of the Undertakers in respect of the undertaking shall be transferred to and may be exercised by and shall attach to the company to whom the transfer is made and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(4) If the transfer directed by this Order has not been made before the expiration of the period limited in that behalf in this section the Board of Trade may revoke this Order upon the expiration of that period.

Deposit.

9. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is one hundred pounds.

10. Except for the purposes of enabling the transfer directed by this Order to be made this Order shall not come into force notwithstanding the confirmation thereof by Parliament until the day when the transfer takes effect and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

A.D. 1910.

Skelmorlie.

Commence-
ment of
Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

That portion of the parish of Largs in the county of Ayr included within the area bounded by a line commencing at a point on the high-water mark near the mouth of the Kelly Burn on the Firth of Clyde in the said parish of Largs and proceeding thence southward along high-water mark of the said Firth of Clyde and following the bends thereof to a point on the high-water mark directly opposite the mouth of the Blackhouse Burn adjoining the public highway from Greenock to Largs where the road leads to the site of Saint Fillan's Chapel proceeding thence eastwards in a line with the said Blackhouse Burn for a distance if measured in a straight line of nine hundred and forty yards or thereabouts proceeding thence in a straight line in a northward direction for a distance of two miles one thousand four hundred and fifty yards or thereabouts to the Kelly Burn proceeding thence in a westerly direction following the course of that burn to the point of commencement above described a distance if measured in a straight line of nine hundred and sixty-six yards or thereabouts:

Provided that in case of difference between the description in this schedule and the area as delineated on the deposited map the latter is to prevail.

SECOND SCHEDULE.

List of streets not repairable by the local authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

The footpath or road leading from the Kelly Bridge Road to Montgomery Terrace;

A.D. 1910.
—
Skelmorlie.

Crescent Road from its junction with Eglinton Terrace and Montgomery Terrace to a point on the said road opposite to the plot of ground marked No. 1369 on Sheet No. 1—7 of the 25-inch Ordnance survey map of Ayrshire (second edition 1897);

The unnamed road leading from Crescent Road to the private house known as Heathfield from its junction with Crescent Road to a point on the said unnamed road opposite to Heathfield;

The unnamed road leading from Eglinton Terrace by Annat Yard to Beithglass;

The unnamed road leading from Eglinton Terrace to Skelmorlie Mains;

The unnamed road leading from Skelmorlie Castle Road by Millburn Cottage to Bridgend;

The unnamed road leading from Saint Fillan's Road to Auchengarth;

The unnamed road leading from Saint Fillan's Road to Millrig;

The unnamed road with steps adjoining the Established Church ground leading from the Shore Road to the avenue forming access to Upper Skelmorlie; and

The unnamed road adjoining the grounds of the Wemyss Bay Hydropathic Skelmorlie on the south-west leading from the Shore Road to the Terrace Road.

THIRD SCHEDULE.

List of streets and parts of streets throughout which suitable and sufficient distributing mains for the purposes of general supply are to be laid down within a period of two years after the commencement of this Order.

That part of the public highway known as the Shore Road from Kelly Burn Bridge southward to a point near the main entrance gate of Skelmorlie Bank House;

The pathway from the Shore Road adjoining the Established Church ground leading to the main carriage drive to Upper Skelmorlie and thence to the cross roads where the Drive the Station Road and the Mid Skelmorlie Road meet;

That part of the public highway from the cross roads along the Mid Skelmorlie Road to the entrance of the Crescent thence round the Crescent to the junction of the Mid Road with the Terrace Road;

The road from the last-named junction along the Terrace to the carriage drive to Upper Skelmorlie;

[10 EDW. 7 &
1 GEO. 5.]

Electric Lighting Orders
Confirmation (No. 2) Act, 1910.

[Ch. lxxvi.]

The pathway from the said Terrace forming the lane adjoining the Wemyss Bay Hydropathic Skelmorlie to the Shore Road; A.D. 1910.
Skelmorlie.

The road from the junction of the Terrace Road with the Mid Skelmorlie Road southward to the foot of the road leading to Skelmorlie Mains; and

The road from the south end of the Crescent eastward along the Halkethburn Road to the corner of the second unnamed avenue above the Crescent.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electromotive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

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